

State of Alaska – Office of the Governor — 34th Alaska State Legislature – Second Session
DEPARTMENT REVIEW – PASSED LEGISLATION

BLUE SHEET

Blue Sheets are a department's final bill analysis and provides the Commissioner an opportunity to weigh in on legislation that has passed, with a recommendation to the Governor on action that may be taken– to enact the bill, to veto the bill, or to allow the bill to become Law without signature (LWOS). Much of the information requested in the Blue Sheet can be taken from the department's bill analyses (BA), which were initially submitted at the time the bill was introduced and updated throughout the legislative process.

Blue sheets are due to the GLO three days after the enrolled bill appears on basis, or sooner by request.

Department: DCCED

Date: 5/22/2026

Bill Number: CSHB278(STA)

Short Title (as it appears on BASIS) ECONOMIC DEV:AK-IRELAND TRADE COMM.:

What action do you recommend the Governor take?

Select one.

☐ SIGN ☒ VETO ☐ LWOS

Action Justification – Why do you recommend the above action?

Please be specific.

The final bill requires Commission members to solicit donations and the department to collect donor data, raising major concerns. Since the Commission must be fully self-funded and must secure donations before any travel can be authorized – which creates ethical concerns as the Commission members are Public Officials – the department recommends veto.

Additional information on points of concern:

- Appointees to the Commission would be considered Public Officials and subject to Alaska's ethics laws. As the primary benefit to individuals serving on the Commission may be annual international travel, the requirement that they solicit donations to fund that travel would likely be inconsistent with AS 39.52.130, which restricts gifts related to the Public Official's action or judgement.
 - o As an example, a gift of travel from a company representing a specific industry could be conditioned implicitly or explicitly on the Public Official representing or conveying their interests to a foreign government – effectively allowing private industry to control the actions of government representatives through gifts or bequests.

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- The anticipated volume of ethics disclosures related to the active solicitation of donations will be an administrative burden on the department.
- The department would be responsible for passing forward a report from a State commission to the legislature with no review, support, or development. The report could be in any format and may or may not be completed, which would be a reflection on the department despite the prohibition from supporting the report development.
- The requirement to collect data is a burden on the department that the legislature has indicated that they will not fund. To limit fiscal impact and ensure that Commission members are never directly handling donated funds, the department would limit the collection of donations to only via credit or debit card through a web portal. The department would then develop the web portal to collect that information and payment card information. This would have to be completed within existing resources.
- The department is home to a large number of boards and commissions; however, none of those boards or commissions are housed in the Commissioner's Office, and all of those boards and commissions have division staff to support their work. This legislation creates a commission in the Commissioner's Office without resources and with an effectively unfunded mandate to support a Commission and provide a report.

The committees that heard the bill and the sponsor were insistent that there be no costs in a fiscal note and made changes to the bill that are unnecessarily specific to mitigate fiscal impacts. The refusal to fund costs does not mean that costs will not exist.

The significant restrictions on commission travel and prohibition on department support for the commission's annual reporting work are notably different than the department's role supporting other boards and commissions. The limitations on board activity and department support, coupled with the role of the department in explaining those rules to the new board members, is very likely to create conflict or tension between new board members and the department, as the department will be forced into essentially a policing role for ethics disclosures and saying 'no' to travel for board members unless they seek out donations (which would then generate another ethics disclosure).

Budget authorization to expend Statutory Designated Program Receipts in the Commissioner's Office will be needed to receive gifts, bequests, or grants from private parties. That authorization was not included in the FY2027 Operating bill, so the department does not have an appropriation to receipt donations into and then expend on travel.

What does this Bill do?

In addition to providing a succinct bill summary, please also consider the following: Why is this bill needed? How does it specifically change department programs? What is the anticipated impact on the public, the private sector? Does this bill align with the priorities of Governor Dunleavy?

This bill creates an Alaska-Ireland Trade Commission, which consist of five members appointed by the Governor. Broadly, the Commission is charged with advancing, promoting, initiating, and encourage trade, investment, economic support, and business and academic exchange and investment between Alaska and Ireland. The Commission is charged with submitting a report of

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their findings, results, and recommendations to the Legislature at the beginning of the 35th annual legislature – effectively early February 2027. Similar Commissions are in place in more than half of the U.S. States.

The underlying purpose of the Commission could be positive for Alaska. The Commission may advance Alaska's position with another northern country and enhance economic and educational exchanges. Ireland and Alaska have similarities in industry, and both sides may benefit from these exchanges. Alaskan businesses in multiple sectors may be interested in information and economic exchanges, including renewable energy, brewing and distilling, agriculture, travel, and cultural tourism businesses. Alaska and Ireland may share rural development and community self-sufficiency concerns would benefit from the Commission's efforts.

The requirement to solicit donations for the operation of a State of Alaska Commission could set a new and troubling precedent for board operations. Recruiting new board members for boards across the department continues to be challenging. Recruiting board members for a board with less department support and with requirements to ask Alaskans for donations to fund State work may be harder.

Detailed Sectional Analysis

The full sectional analysis of the bill should be completed by the lead agency. Other departments should include an analysis for sections of the bill affecting their agencies.

Section 1: Creates the Alaska-Ireland Trade Commission.

- a) Creates the commission.
- b) Establishes membership.
 - 1. Consists of five members appointed by the Governor.
 - 2. Two members of the House of Representatives, appointed by the House.
 - 3. Two members of the Senate, appointed by the Senate.
- c) Members appointed by the Governor serve staggered three-year terms. Members of the House and Senate serve two year terms. All members serve at the pleasure of the appointing authority.
- d) Specifies the goals of the Commission:
 - 1. Advance trade and bilateral investment
 - 2. Initiate joint action on policy issues of mutual interest
 - 3. Promote business, entrepreneurship, new venture development, and academic exchanges
 - 4. Promote research collaborations and funding opportunities
 - 5. Encourage mutual economic support
 - 6. Encourage mutual investment in the infrastructure
 - 7. Address other issues as determined by the Commission
- e) The Commission elects a chair from the members. A majority is a quorum.
- f) Meetings will be electronic except for meetings outside of the state that the commission says should be in person. Public notice of 7 days is needed before a meeting.
- g) Allows the commission to accept a grant, donation, or gift from a public or private source to pay for travel and "other assistance and support the commission requires to carry out

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the purposes of this section” only if the department collects specific information (listed under (h)(1)) and provides that information to the commission.

1. Per diem and travel expenses
 2. Other assistance and support the commission requires to carry out the purposes of this section
- h) Except as permitted under (g)(1) (department collects and provides information) members serve without compensation and aren’t eligible for per diem or travel costs.
- i) The Commission must prepare and deliver a report by the 30th day of each session (mid February) that includes:
1. Information on the grants, donations, and gifts accepted for the prior year, including:
 - A. Date and amount of each collection
 - B. Total amount or value of all grants, donations, and gifts
 - C. Name and address of each person who contributed, and the dates and values
 - D. For contributions over \$50, the principal occupation and employer of the person contributing
 2. The commission’s “findings results and recommendations”
- j) The Commission can only contract for report writing services if they receive donations for that purpose. The department is prohibited from providing staff to “support or prepare” the report.
- k) Defines the department as DCCED.

Section 2: Initial appointments.

Creates staggered appointments for the initial appointments.

Section 3: Effective Date.

The bill takes effect immediately.

Companion or Similar Bills

Please note companion legislation, the sponsor of the companion legislation, and identify any “rider” bills or provisions from other legislation that was included in this final bill. Please include the name of the sponsor of the “rider bill” or provision. If it was added as an amendment in a committee – please indicate the name of the legislator that sponsored the amendment.

N/A

Support/Opposition of the Bill

Please identify names, organizations, titles, and phones numbers of those who testified in support or in opposition of this bill.

Support:

Mark Daly, President, Seanad Éireann (effectively President of the national Senate)
Katie O’Dell, President, Irish Club of Alaska – (907) 570-7391

No known opposition.

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Bill Signing ceremony suggestions (if applicable)

Please provide information for consideration for a bill signing ceremony. Information that is helpful includes: a specific conference, event, venue, date, and the names and contact information of stakeholders who should be considered for an invitation to the bill signing ceremony.

We do not recommend signing.

That said, the Irish Club of Alaska is anticipated to attend and have a presence at the Alaska Scottish Highland Games, held June 27-28, 2026 at Palmer Fairgrounds. While the Highland Games are not Irish, it would align with Senator Daly's description of Ireland as both the Gateway to the European Union and the Gateway to the United Kingdom.

Consider inviting Senator Daly, though funding does not exist to pay for his travel.

Commissioner's Signature:

DocuSigned by:

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Date: 5/26/2026

I have reviewed the above information and provided it to the Governor's Legislative Office for consideration of an action by the Governor on legislation passed during the second session of the 34th Alaska State Legislature.

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